

Court No. - 32

Case :- WRIT - C No. - 9992 of 2020

Petitioner :- Raj Kumar Chaudhary

Respondent :- Purvanchal Vidyut Vitran Nigam
Ltd. And Another

Counsel for Petitioner :- Shiv Sagar Singh,
Ashok Kumar Dwivedi

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(a) Issue a writ, order or direction in the nature of mandamus directing the respondents to correct the electricity bill in respect of the connection/account no. 9749834629 of the petitioner.

(b) Issue a writ, order or direction in the nature of mandamus directing the respondents to issue a fresh bill-cum notice for use of electricity charges as per the meter reading and thereafter issue fresh demand."

Heard learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 7 weeks, the impugned bill cum notice dated 11.02.2020 issued by the respondent no. 2 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 19.6.2020

Arun